

GINSBURG, J., dissenting

eral prosecutions do not place a defendant in “jeopardy . . . for the same offence.” *Ante*, at 681, 683–684 (internal quotation marks omitted).

This “compact syllogism” is fatally flawed. See Braun, *Praying to False Sovereigns: The Rule Permitting Successive Prosecutions in the Age of Cooperative Federalism*, 20 *Am. J. Crim. L.* 1, 25 (1992). The United States and its constituent States, unlike foreign nations, are “kindred systems,” “parts of ONE WHOLE.” The Federalist No. 82, p. 493 (C. Rossiter ed. 1961) (A. Hamilton). They compose one people, bound by an overriding Federal Constitution. Within that “WHOLE,” the Federal and State Governments should be disabled from accomplishing together “what neither government [could] do alone—prosecute an ordinary citizen twice for the same offence.” Amar & Marcus, *Double Jeopardy Law After Rodney King*, 95 *Colum. L. Rev.* 1, 2 (1995).

The notion that the Federal Government and the States are separate sovereigns overlooks a basic tenet of our federal system. The doctrine treats *governments* as sovereign, with state power to prosecute carried over from years pre-dating the Constitution. See *Heath v. Alabama*, 474 U.S. 82, 89 (1985) (citing *Lanza*, 260 U.S., at 382). In the system established by the Federal Constitution, however, “ultimate sovereignty” resides in the *governed*. *Arizona State Legislature v. Arizona Independent Redistricting Comm’n*, 576 U.S. 787, 820 (2015); *Martin v. Hunter’s Lessee*, 1 Wheat. 304, 324–325 (1816); Braun, *supra*, at 26–30. Insofar as a crime offends the “peace and dignity” of a sovereign, *Lanza*, 260 U.S., at 382, that “sovereign” is the people, the “original fountain of all legitimate authority,” The Federalist No. 22, at 152 (A. Hamilton); see Note, *Double Prosecution by State and Federal Governments: Another Exercise in Federalism*, 80 *Harv. L. Rev.* 1538, 1542 (1967). States may be separate, but their populations are part of the people composing the United States.